

[10 & 11 GEO. 5.] *Ministry of Health Provisional* [Ch. cxxxv.]
Order Confirmation (New Windsor Extension) Act, 1920.



CHAPTER cxxxv.

An Act to confirm a Provisional Order of the Minister of Health relating to New Windsor. [16th August 1920.] A.D. 1920.

WHEREAS the Minister of Health has made the Provisional Order set forth in the schedule hereto under the provisions of the Local Government Act 1888:

51 & 52 Vict.
c. 41.

And whereas it is requisite that the said Order should be confirmed by Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The Order as altered and set out in the schedule hereto shall be and the same is hereby confirmed and all the provisions thereof shall have full validity and force. Order in schedule confirmed.

2. This Act may be cited as the Ministry of Health Provisional Order Confirmation (New Windsor Extension) Act 1920. Short title.

A.D. 1920.

S C H E D U L E.

BOROUGH OF NEW WINDSOR.

New Windsor *Provisional Order made in pursuance of the Local Government*
Order. *Act 1888 for extending a Borough.*

To the Mayor Aldermen and Burgesses of the Borough of New Windsor; —
To the Court of Quarter Sessions for the said Borough; —
To the Justices of the Peace for the said Borough; —
To the Justices of the Peace for the County of Berks in Quarter Sessions assembled; —
To the County Council of Berks; —
To the Rural District Council of Windsor; —
To the Guardians of the Poor of the Windsor Union; —
To the Overseers of the Poor of the Parishes of New Windsor Clewer Within and Clewer Without; —
To the Parish Council of Clewer Without; —
And to all others whom it may concern.

51 & 52 Vict.
c. 41.

WHEREAS by virtue of Section 54 of the Local Government Act 1888 the Minister of Health is empowered to make a Provisional Order for altering the boundary of any Borough;

And whereas the Borough of New Windsor in the County of Berks is a Borough within the meaning of the Local Government Act 1888 and the inhabitants are a body corporate by the name of the Mayor Aldermen and Burgesses of the Borough of New Windsor and act by the Council of the said Borough which now consists of the Mayor (who is also a Councillor) six Aldermen and seventeen other Councillors and the said Borough is for the purposes of the election of Councillors divided into three wards termed respectively the Castle Ward the Park Ward and the Clewer Within Ward;

And whereas the said Borough comprises the Parishes of New Windsor and Clewer Within and is an urban district of which the Mayor Aldermen and Burgesses acting by the Council are the Urban District Council;

And whereas the said Borough has a separate court of quarter sessions recorder commission of the peace police force and coroner;

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And whereas in pursuance of the Education Act 1902 the Council of the said Borough are the local education authority for the purposes of Part III. of that Act and the County Council of Berks are the local education authority for the other purposes of that Act; A.D. 1920.
*New Windsor
Order.*
2 Edw. 7.
c. 42.

And whereas the unrepealed provisions of the Local Acts specified in Part I. of the Schedule to this Order and of the Confirmation Act specified in Part II. of the said schedule so far as the last-mentioned Act relates to the Order specified in that schedule are in force in the said Borough;

And whereas the provisions of—

- (a) The Infectious Disease (Prevention) Act 1890; 53 & 54 Vict.
c. 34.
- (b) The Public Health Acts Amendment Act 1890 (except Part IV.); 53 & 54 Vict.
c. 59.
- (c) The Private Street Works Act 1892; and 55 & 56 Vict.
c. 57.
- (d) The Baths and Washhouses Acts 1846 to 1899; 9 & 10 Vict. c. 74.
10 & 11 Vict. c. 61.
41 & 42 Vict. c. 14.
45 & 46 Vict. c. 30.
59 & 60 Vict. c. 59.
62 & 63 Vict. c. 29.

are in force in the said Borough;

And whereas the Council of the said Borough are the authority for the execution of the Burial Acts 1852 to 1906 within the Borough; 15 & 16 Vict. c. 8
6 Edw. 7 c. 44.

And whereas the Parish of Clewer Without in the Administrative County of Berks immediately adjoins the said Borough and is a contributory place in the Rural District of Windsor and is subject to the jurisdiction of the Rural District Council of Windsor and four Rural District Councillors are elected for the said Parish;

And whereas the provisions of the Infectious Disease (Prevention) Act 1890 and the provisions of Part III. of the Public Health Acts Amendment Act 1890 which are applicable to Rural Districts are in force in the Rural District of Windsor;

And whereas the Parishes of New Windsor Clewer Within and Clewer Without are included in the Windsor Union and the four rural district councillors elected as aforesaid for the said Parish of Clewer Without are the representatives of that Parish on the Board of Guardians of the Windsor Union;

And whereas the Parish of Clewer Without is a rural parish within the meaning of the Local Government Act 1894 for which a Parish Council has been established; 56 & 57 Vict.
c. 73.

And whereas in pursuance of the Education Act 1902 the Parish of Clewer Without forms part of the area of the County Council of the Administrative County of Berks as the local education authority:

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A.D. 1920. Now therefore the Minister of Health in pursuance of the powers
New Windsor given to him by Sections 54 and 59 of the Local Government Act 1888
Order, and by any other enactments in that behalf hereby orders that from
51 & 52 Vict. and after the date of the Act of Parliament confirming this Order the
c. 41. following provisions shall take effect:—

Definitions.

Art. I. In this Order—

- (1) The expression “the commencement of this Order” means the Ninth day of November One thousand nine hundred and twenty;
- (2) The expression “the existing Borough” means the Borough of New Windsor as it existed immediately prior to the commencement of this Order;
- (3) The expression “the Borough” means the existing Borough as extended by this Order;
- (4) The expression “the Minister” means the Minister of Health;
- (5) The expression “the Corporation” means as the context requires the Mayor Aldermen and Burgesses of the existing Borough or of the Borough acting by the Council;
- (6) The expressions “the County” and “the County Council” mean respectively the Administrative County of Berks and the County Council of that County;
- (7) The expression “the Borough maps” means the two maps each marked “Map of the Borough of New Windsor as extended 1920” and sealed with the official seal of the Minister;
- (8) The expressions “the Rural District” and “the Rural Council” mean respectively the Rural District of Windsor and the Rural District Council of that District;
- (9) The expression “the added area” means the part of the Rural District added to the existing Borough by this Order;
- (10) The expressions “the Act of 1888” and “the Act of 1894” mean respectively the Local Government Act 1888 and the Local Government Act 1894;
- (11) The expression “the Municipal Corporations Acts” means the Municipal Corporations Act 1882 and the Acts amending and extending the same and the expression “the Public Health Acts” means the Public Health Act 1875 and the Acts amending and extending the same;
- (12) The expression “the Act of 1907” means the Public Health Acts Amendment Act 1907.

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Art. II. This Order shall except so far as is otherwise herein expressly provided and so far as there may be anything in the subject-matter or context inconsistent therewith come into operation on the Ninth day of November One thousand nine hundred and twenty :

New Windsor
Order.

Commence-
ment of
Order.

Provided that for the purposes of all proceedings preliminary or relating to any municipal election to be held on the ordinary day of election in the year One thousand nine hundred and twenty and of the revision of the basis or standard of the county rate of the County this Order shall operate from the date of the Act of Parliament confirming this Order.

Date of
operation of
Order for
elections &c.

Art. III.—(1) The boundary of the existing Borough the area whereof is coloured pink on the Borough maps shall be altered so as to include in addition to that area so much of the Rural District as comprises the Parish of Clewer Without the area whereof is coloured purple and green on the Borough maps.

Extension of
Borough.

(2) The boundary of the Borough shall be that shown by the red line on the Borough maps and the whole of the area within that boundary shall for the purposes of the Municipal Corporations Acts and for all other purposes be the Borough.

Art. IV.—(1) One of the Borough maps shall be deposited in the office of the Minister and the other shall be deposited by the town clerk of the existing Borough at his office within fourteen days after the date of this Order. Copies of the Borough map deposited with the town clerk certified by him to be true shall be sent within one month after the date of the Act of Parliament confirming this Order to the clerk of the County Council to the clerk to the Rural Council to the Board of Inland Revenue to the Commissioners of Customs and Excise to the Registrar-General to the Postmaster-General to the Board of Trade to the Minister of Transport to the Minister of Agriculture and Fisheries and to the Electricity Commissioners.

Deposit of
maps.

(2) Copies of or extracts from the Borough map deposited with the town clerk certified by him to be true shall be received in all courts of justice and elsewhere as *prima facie* evidence of the contents of the map so far as it relates to the boundaries of the Borough and the map shall at all reasonable times be open to inspection by any person liable to any rate leviable within the Borough and any such person shall be entitled to a copy of or extract from the map certified by the town clerk to be true on payment of a reasonable fee to be determined by the Corporation. All fees so received shall be carried to the credit of the borough fund.

Copies of
map to be
evidence

Art. V. The powers and duties of the quarter sessions recorder clerk of the peace and coroner of the existing Borough and of the justices of the peace appointed for the existing Borough and of the

Powers and
duties of
justices
extended.

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A.D. 1920. clerk to those justices and subject to Article XXIV. of this Order
New Windsor of the police constables and other peace officers of the existing
Order. Borough shall extend to and apply throughout the Borough:

Provided that every person committing an offence in any part of the added area prior to the commencement of this Order shall be tried adjudicated on and dealt with as if this Order had not been made:

Provided also that every proceeding which prior to the commencement of this Order has been begun by or before any justice or justices or coroner in relation to any matter arising in or concerning any part of the added area may be carried on continued or completed in like manner and with the like incidents and consequences as nearly as may be as if this Order had not been made.

Application of
 County and
 Borough Councils (Qualification)
 Act 1914.
 4 & 5 Geo. 5.
 c. 21.

Art. VI. For the purposes of the application to the Borough of the provisions of the County and Borough Councils (Qualification) Act 1914 the added area shall be deemed to have always formed part of the Borough.

Number of
 Councillors
 and Aldermen.

Art. VII. The number of Councillors of the Borough shall be increased from eighteen to twenty-seven and the number of Aldermen of the Borough shall be increased from six to nine.

Art. VIII. Subject to the provisions of the Municipal Corporations Acts with respect to the alteration of wards the following provisions shall have effect:—

Division into
 wards.

(1) For the purposes of the election of Councillors the Borough shall be divided into five wards:

(2) The three existing wards and the number of Councillors respectively apportioned thereto shall remain unaltered but the existing Ward at present called the Clewer Within Ward shall be called the Trinity Ward:

New wards.

(3) The added area shall be formed into two new wards which shall be termed respectively the Clewer North Ward and the Clewer South Ward:

(4) The Clewer North Ward shall comprise the portion of the added area which is coloured purple on the Borough maps and the Clewer South Ward shall comprise the portion of the added area which is coloured green on the Borough maps:

(5) Six Councillors shall be assigned to the Clewer North Ward and three Councillors shall be assigned to the Clewer South Ward.

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Art. IX.—(1) The first election of Councillors for the Clewer North and the Clewer South Wards constituted by this Order shall be held on the First day of November One thousand nine hundred and twenty and the Mayor of the existing Borough shall be the returning officer at the election for each ward Provided that the Mayor of the existing Borough may appoint some other person to act as returning officer at the election for either of the wards.

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First election of Councillors for new wards and additional Aldermen.

(2) The first election of the three additional Aldermen of the Borough shall take place on the Ninth day of November One thousand nine hundred and twenty and the additional Aldermen so elected shall be chosen from among the Councillors elected for the Clewer North Ward and the Clewer South Ward or from among the persons qualified to be Councillors whose qualifying property is situate in such wards or either of them.

Art. X.—(1) The Councillors elected for the Borough in the year One thousand nine hundred and twenty for the Clewer North and the Clewer South Wards shall retire as follows:—

Retirement of Councillors for new wards and additional Aldermen elected in 1920.

(a) The two Councillors for the Clewer North Ward who are elected and the one Councillor for the Clewer South Ward who is elected by the smallest number of votes on the First day of November One thousand nine hundred and twenty-one:

(b) The two Councillors for the Clewer North Ward who are elected and the one Councillor for the Clewer South Ward who is elected by the largest number of votes on the First day of November One thousand nine hundred and twenty-three:

(c) The other Councillors or Councillor for each ward on the First day of November One thousand nine hundred and twenty-two.

(2) Of the three additional Aldermen elected for the Borough in the year One thousand nine hundred and twenty in pursuance of this Order the Alderman elected by the smallest number of votes shall retire on the Ninth day of November One thousand nine hundred and twenty-three and the other two Aldermen shall retire on the Ninth day of November One thousand nine hundred and twenty-six:

Provided that if for any reason it is doubtful which of the Councillors or Aldermen as the case may be ought to retire on the dates above specified the Council of the Borough shall on the Ninth day of November One thousand nine hundred and twenty or at the next following quarterly meeting and not later by a majority of votes or in case of an equality of votes by the casting vote of the

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A.D. 1920. chairman determine which of the Councillors or Aldermen as the
New Windsor case may be shall go out of office on the dates above specified
Order. respectively.

Local Acts
and Orders.

Art. XI. — (1) The unrepealed provisions of the Local Acts
9 George III. c. x. and 47 George III. c. viii. shall be repealed.

(2) Subject to the provisions of this Order the unrepealed provisions
of the Local Acts and of the Confirmation Act specified in the
Schedule to this Order so far as the last-mentioned Act relates to the
Provisional Order specified in that Schedule and of any other Local
Act (including any Local Act passed or to be passed during the
present Session of Parliament) or of any other Provisional Order duly
confirmed by Parliament and affecting the existing Borough or the
Corporation as the same respectively are in force within the existing
Borough at the commencement of this Order shall extend and apply to
the Borough and any reference therein to the existing Borough and
the Corporation shall be deemed to refer to the Borough and the
Corporation thereof.

(3) Notwithstanding the transfer by the Corporation to the
Windsor Electrical Installation Company of the undertaking authorised
by the Electric Lighting Orders Confirmation (No. 5) Act 1895 (con-
firming the New Windsor Corporation Electric Lighting Order 1895)
the Corporation shall be the undertakers for the purposes of the said
Order within the added area and may if they think fit transfer the
undertaking within that area with the consent of and on such terms
and conditions as may be approved by the Electricity Commissioners
by deed approved by those Commissioners.

Byelaws &c.

Art. XII. Subject to the provisions of this Order—

(1) All byelaws orders and regulations and every list of tolls
and table of fees and payments and scale of charges made
by the Corporation which at the commencement of this
Order are in force in the existing Borough shall thence-
forth apply to the Borough until or except in so far as
any such byelaws or orders or regulations or list of tolls
or table of fees and payments or scale of charges may be
altered or repealed :

(2) All byelaws and regulations made by the Rural Council
or their predecessors and all byelaws made by the County
Council under Section 16 of the Act of 1888 and in force
immediately before the commencement of this Order in
the added area and all orders made by the County
Council which are in force therein (so far as the same
or similar orders have been or could have been made by
the Corporation) shall on that date cease to be in force

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except as regards any work which has been begun before that date or as regards any work which has not been so begun but for which plans have been approved before that date by the Rural Council or have been sent to the surveyor or clerk to the Rural Council one month at least before that date and have not been disapproved by the Rural Council. As regards any such work as aforesaid the byelaws in force immediately before the commencement of this Order shall continue to apply until the completion of the work in like manner and with the like effect as if those byelaws had been made by the Corporation and as if the Corporation and the Borough were referred to therein instead of the Rural Council and the Rural District. Provided that any proceedings which if this Order had not been made might have been taken by the County Council or the Rural Council for any offence committed before the commencement of this Order against any byelaws orders and regulations which by virtue of this Article will at the commencement of this Order cease to be in force may be taken by the Corporation as if those byelaws orders and regulations had remained in force and the Corporation had been substituted therein for that Council.

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Order.*

Art. XIII.—(1) The town clerk and all other officers and servants of the Corporation of the existing Borough who hold office at the commencement of this Order shall continue to be the town clerk and officers and servants of the Corporation of the Borough and shall hold their offices by the same tenure as at that date.

Town clerk
and other
officers con-
tinued.

(2) The auditors of the existing Borough who are in office at the commencement of this Order shall continue in office and shall for the purposes of the Municipal Corporations Acts be the borough auditors until the next ordinary day of election of borough auditors.

Borough
auditors.

Art. XIV.—(1) Every clerk to justices and coroner and every officer or servant of or paid by the County Council or of or paid by the Standing Joint Committee of the County and every other officer or servant who by virtue of this Order or of anything done in pursuance or in consequence thereof suffers any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and for whose compensation no other provision is made by any enactment for the time being in force and applicable to his case shall be entitled to have compensation paid to him by the Corporation for that pecuniary loss and in determining the said compensation regard shall be had to the conditions and other circumstances required by subsection (1) of Section 120 of the Act of 1888 to be had in regard in cases of compensation under that section.

Compensa-
tion to exist-
ing officers.

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A.D. 1920. and the compensation shall not exceed the limit therein mentioned
New Windsor and shall be paid in the case of any such officer or servant whose
Order. office or employment relates wholly or partly to sanitary purposes as defined by the Public Health Act 1875 out of the district fund and general district rate of the Borough and in every other case out of the borough fund and borough rate of the Borough and the provisions of subsections (2) to (7) of Section 120 of the Act of 1888 shall apply with the necessary modifications Provided that the non-acceptance of any office shall not be a bar to the right of any officer to compensation.

(2) For the purposes of subdivision (1) of this Article any clerk to justices coroner or officer or servant to whom that subdivision applies and whose services are dispensed with or whose salary is reduced by the Secretary of State or the County Council or the Standing Joint Committee of the County or any other authority including the Corporation within five years from the commencement of this Order because his services are not required or his duties are diminished in consequence of this Order and not on the ground of misconduct shall be deemed to have suffered a direct pecuniary loss in consequence of this Order.

(3) No person shall be entitled to claim or receive both compensation for any direct pecuniary loss by abolition of office or by diminution or loss of fees or salary and a superannuation or retiring allowance in respect of the same period of service and the same pecuniary loss.

Actions &c.
not to abate.

Art. XV.—(1) Any action or proceeding or any cause of action or proceeding which at the commencement of this Order is pending or existing by or against the Rural Council in relation exclusively to any part of the added area shall not be in anywise prejudicially affected by reason of the making of this Order but may be continued prosecuted and enforced by or against the Corporation of the Borough.

Saving for
contracts &c

(2) Anything duly done or suffered and all contracts deeds bonds agreements and other instruments (subsisting at the commencement of this Order) entered into or made by the Rural Council or their predecessors in relation exclusively to any part of the added area shall be of as full force and effect against or in favour of the Corporation of the Borough and may be continued and enforced as fully and effectually as if instead of the Rural Council or their predecessors the Corporation had done or suffered the same or been a party thereto.

Corporation
property &c.

Art. XVI. Subject to the provisions of this Order all property vested in the Corporation at the commencement of this Order for the benefit of the existing Borough shall by virtue of this Order be held by the Corporation for the benefit of the Borough and the Corporation shall hold enjoy and exercise for the benefit of the Borough all the powers which at the date aforesaid are exerciseable by or vested in the

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Corporation for the benefit of the existing Borough and all liabilities which on the date aforesaid attach to the Corporation in respect of the existing Borough shall from and after that date attach to them in respect of the Borough. A.D. 1920.
New Windsor
Order.

Art. XVII. Subject to the provisions of this Order—

- (1) All property and liabilities which immediately before the commencement of this Order are vested in or attach to the Rural Council in relation exclusively to any part of the added area shall by virtue of this Order be transferred to and vest in and attach to the Corporation as Urban District Council: Property &c.
of Rural
Council.
- (2) The Rural Council shall cease to exercise any powers or have any duties within the added area: Cesser of juris-
diction of
Rural Council.
- (3) All arrears of rates made by the Overseers of the Poor of the Parish of Clewer Without for the purposes of the Public Health Acts or for highway expenses which at the commencement of this Order are due or owing may be collected and recovered as if this Order had not been made and when collected and recovered shall be applied towards the discharge of any precept of the Rural Council which at that date shall be in force and not satisfied and the balances (if any) shall be paid to the Corporation: Arrears of
rates &c.
- (4) For the purposes of the application of Section 62 of the Act of 1888 to any adjustment which may become necessary in consequence of this Order that section shall have effect as if in subsections (5) (6) and (7) thereof the expression "Council" included any authority affected by this Order or by anything done in pursuance of this Order and as if in the case of any such authority not otherwise empowered to borrow under any Act or on any security or in any manner mentioned in the said subsection (6) that subsection empowered the authority to borrow under any Act relating to and conferring on the authority a power to borrow on the security of all or any of the funds rates and revenues of the authority and in the manner provided by the said Act but without the consent of any other authority and subject to the requirement that all money so borrowed shall be repaid within such period as the Minister may sanction. Adaptation
of provisions
as to adjust-
ment.

Art. XVIII. So much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the district fund and general district rate of the existing Borough shall by virtue of this Order be charged upon the district fund. Mortgage
debts of Cor-
poration.

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A.D. 1920. *New Windsor Order.* and general district rate of the Borough and so much of any sums borrowed by the Corporation as will at the commencement of this Order be owing and charged upon the borough fund and borough rate of the existing Borough shall by virtue of this Order be charged upon the borough fund and borough rate of the Borough and all those sums shall together with the interest to accrue due thereon be repaid by the Corporation within the respective periods for which the loans in respect of which the said sums are owing were originally sanctioned or within which the same are otherwise required to be repaid or are made repayable.

Adoptive Acts.

Art. XIX. The provisions of the Baths and Washhouses Acts 1846 to 1899 the Infectious Disease (Prevention) Act 1890 the Public Health Acts Amendment Act 1890 (except Part IV. thereof) and the Private Street Works Act 1892 shall be in force in and apply to the Borough as if the same had been adopted for the Borough.

Powers under Act of 1907. 7 Edw. 7. c. 53.

Art. XX.—(1) Subject to the provisions of any order which the Minister or a Secretary of State may make after the commencement of this Order the provisions of any order made by the Local Government Board or by a Secretary of State before the commencement of this Order and declaring to be in force in the existing Borough any Parts or Sections of the Act of 1907 shall have and shall be deemed always to have had effect as if any reference in those provisions to the existing Borough extended and applied to the Borough and as if the said Parts and Sections were accordingly declared to be in force in the Borough.

(2) The provisions of any order made by the Local Government Board or by the Minister or by a Secretary of State before the commencement of this Order and declaring to be in force in the added area any Parts or Sections of the Act of 1907 shall cease to apply to the added area and subject to the provisions of subdivision (1) of this Order the Parts and Sections declared by any such order to be in force shall cease to be in force in the added area.

Powers under Section 33 of Act of 1894.

Art. XXI. Subject to the provisions of any order which the Minister may hereafter make the provisions of any order heretofore made by the Local Government Board under Section 33 of the Act of 1894 shall be deemed to have effect as if any reference in those provisions to a parish included in the existing Borough extended and applied to the Parishes of New Windsor Clewer Within and Clewer Without.

Orders made under Shop Hours Act 1904 and Shops Act 1912. 4 Edw. 7. c. 31. 2 Geo. 5. c. 3.

Art. XXII. Any order made under the Shop Hours Act 1904 the Shops Act 1912 or any other Act providing for the closing of shops and in force immediately before the commencement of this Order in any area affected by this Order shall subject to the provisions of any of the above Acts remain in force and apply to the area to which it applied immediately before the commencement of this Order.

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Art. XXIII. For the purposes and subject to the provisions of the Education Acts 1870 to 1919—

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New Windsor
Order.
 Transfer of
 public ele-
 mentary
 schools &c. to
 Corporation.

(1) All public elementary schools (including the sites and school-houses) provided by the County Council as the local education authority situate in the added area and the furniture fittings books and apparatus belonging to the County Council of any public elementary school in the added area shall by virtue of this Order be transferred to and vest in the Corporation as the local education authority for all the estate and interest therein of the County Council as the local education authority:

(2) All contracts debts and liabilities which at the commencement of this Order are existing or are owing by or attach to the County Council in respect exclusively of any public elementary school in the added area or of the furniture fittings books or apparatus or with respect to the officers teachers and servants of any public elementary school in the added area shall by virtue of this Order enure to and be carried into effect by and be discharged by the Corporation as the local education authority:

(3) Section 68 of the Act of 1894 shall apply with respect to any adjustment required for the purposes of subdivisions (1) and (2) of this Article:

(4) Subject to any adjustment which may hereafter be made the liability for repayment of so much of any loan raised exclusively in respect of any public elementary school (including the site and schoolhouse) or of the furniture fittings or apparatus transferred to and vested in the Corporation by virtue of this Order as will be owing at the commencement of this Order and the liability for the payment of interest on that part of the said loan shall by virtue of this Order be transferred and attach to the Corporation as the local education authority and so much of any such loan as will be owing at the commencement of this Order shall be charged on the borough fund and the borough rate of the Borough and shall be repaid by the Corporation within the period if any for which that part of the loan was originally sanctioned or within which the said part of the loan is otherwise required to be repaid or is made repayable:

Mortgage
 debts in
 respect of
 transferred
 schools.

(5) In the foregoing subdivisions of this Article the expression "public elementary school" includes any land acquired and held by the County Council as the local education authority for purposes of elementary education:

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Order.
Education
byelaws.*

(6) Any byelaws in force in the existing Borough immediately before the commencement of this Order shall from and after that date apply to the Borough until revoked or altered and from and after that date any byelaws then in force in the added area shall cease to be in force:

Managers.

(7) Any managers of any public elementary school in the added area who were appointed by the County Council or by the Parish Council shall vacate office at the commencement of this Order.

*County
police.*

Art. XXIV.—(1) At the commencement of this Article such number of the members of the police force of the County as shall be determined by agreement to be made as soon as practicable after the date of the Act of Parliament confirming this Order between the Standing Joint Committee of the County and the Watch Committee of the existing Borough or in default of any such agreement as shall be determined by a Secretary of State shall be transferred to and become part of the police force of the County. Provided that no member of the police force of the County shall be transferred to or become a member of the police force of the Borough under this subdivision unless such member consents to be so transferred.

(2) Every member of the county police force so transferred shall hold office in the police force of the Borough upon the same tenure and upon the same terms and conditions as he would have held office in the county police force if this Order had not been made and while he performs the same or similar duties his remuneration emoluments and allowances and the pension (if any) to which he may be entitled shall not be less than they would have been if this Order had not been made.

*53 & 54 Vict.
c. 45.*

(3) The provisions of Section 15 (2) of the Police Act 1890 as amended by any subsequent Act shall extend and apply to and in relation to any member of the police force transferred under the powers of this Article as if that member had removed with the written sanction of the Chief Constable of the County.

*County police
stations.*

(4) All the county police stations situate in any part of the added area with the residences for constables and cells connected therewith and the fittings and furniture thereof respectively shall by virtue of this Order be transferred to and vest in the Corporation as from the commencement of this Article for all the estate and interest therein of the County Council and there shall be paid by the Corporation to the County Council out of the borough fund in consideration of such transfer such sums as shall be agreed upon or as in default of agreement shall be settled by arbitration in manner provided by the Act of 1888.

[10 & 11 Geo. 5.] *Ministry of Health Provisional [Ch. cxxxv.]*
Order Confirmation (New Windsor Extension) Act, 1920.

(5) In the event of the amount of the consideration for the transfer of the property which by virtue of subdivision (4) of this Article is transferred to and vested in the Corporation not being ascertained before the commencement of this Article the date of the final ascertainment of the consideration shall for the purposes of Section 12 of the Finance Act 1895 be treated as the date of vesting.

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Order.

(6) The date on which the powers and duties of the police constables and other peace officers of the existing Borough shall extend and apply to the added area shall be such day as may be determined as soon as practicable after the date of the Act of Parliament confirming this Order by agreement between the Standing Joint Committee of the County and the Watch Committee of the existing Borough or failing agreement before that date as may be appointed by the Secretary of State and this Article shall come into operation on the date so determined or appointed in pursuance of this provision.

(7) The provisions of this Article shall have no effect if before the commencement of this Article an agreement shall with the approval of a Secretary of State be made between the Corporation or the Watch Committee of the existing Borough and the County Council or the Standing Joint Committee of the County for the consolidation of the police forces of the existing Borough and the County.

Art. XXV. The names of the Electoral Divisions of the County of Berks which are now known as the Windsor (Clewer) Electoral Division and the Clewer Electoral Division shall be altered and those Divisions shall be known as the Windsor (Clewer Within) Electoral Division and the Windsor (Clewer Without) Electoral Division.

Electoral
Divisions.

Art. XXVI. The Corporation shall be the burial board for the Borough and shall have within the Borough to the exclusion of any other burial authority all the powers duties and liabilities of a burial board under the Burial Acts 1852 to 1906 Provided that no approval sanction or authorisation of the vestry of any Parish shall be required in respect of any act of the Corporation as the burial board as aforesaid.

Corporation
to be burial
board for the
Borough.

Art. XXVII. The persons who at the commencement of this Order are holding the offices of Rural District Councillor and Guardian for the Parish of Clewer Without shall cease to hold the offices of Rural District Councillor but shall continue to act as Guardians of the Windsor Union until the date upon which they would have retired if this Order had not been made.

Rural Dis-
trict Coun-
cillors and
Guardians
for Clewer
Without.

Art. XXVIII. The Parish Council of Clewer Without shall cease to exist and any powers and duties transferred by the Act of 1894 to that Parish Council shall be vested in and imposed on the persons and

Parish
Council to
cease to exist.

[Ch. cxxxv.] *Ministry of Health Provisional [10 & 11 Geo. 5.]
Order Confirmation (New Windsor Extension) Act, 1920.*

A.D. 1920. *New Windsor Order.* authorities in or on whom they would be vested or imposed if the Parish had been a parish in the existing Borough on the appointed day within the meaning of the Act of 1894 and all property and liabilities held or incurred by the said Parish Council for the purposes or by virtue of the said powers and duties shall by virtue of this Order be transferred to and vest in the persons and authorities aforesaid. Any property or liabilities of the said Parish Council held or incurred otherwise than by virtue or for the purposes of the powers or duties aforesaid shall by virtue of this Order be transferred to and vest in the Corporation.

Audit of accounts of Parish Council.

Art. XXIX. The accounts of the Parish Council of Clewer Without and of their committees and officers shall be made up to the commencement of this Order and shall be audited by the District Auditor in like manner and subject to the like incidents and consequences as if this Order had not been made:

Provided that the audit may be held as soon as practicable after that date any statutory provision or regulation as to the time of holding the audit to the contrary notwithstanding and that any sum certified by the District Auditor to be due from any person shall be paid to the treasurer of the Borough.

Registration of electors.

Art. XXX.—(1) For the purposes of the register of local government electors of the Borough prepared next after the commencement of this Order in pursuance of the Representation of the People Act 1918 and of all matters connected with incidental to or consequent upon these purposes the added area shall be deemed to have formed part of the Borough as from the first day of the qualifying period for that register.

(2) In the preparation of the autumn register for the year 1920 in pursuance of the Representation of the People Act 1918 so far as it relates to areas affected by this Order it shall be competent to the registration officer to frame the register in separate parts for each area which will constitute a registration unit from and after the commencement of this Order instead of in separate parts for each area constituting a registration unit before the commencement of this Order.

(3) If the register of local government electors for any local government electoral area affected by this Order and in force at the commencement of this Order is not so framed as to show the persons entitled to vote at an election to be held for any parish ward or other electoral division of the area the town clerk in the case of an election for a parish ward or electoral division within the Borough and the registration officer of the parliamentary county in the case of an election for a parish ward or electoral division outside the

[10 & 11 GEO. 5.] *Ministry of Health Provisional [Ch. cxxxv.]*
Order Confirmation (New Windsor Extension) Act, 1920.

Borough shall make such alteration or re-arrangement of the register as may be necessary for the purposes of such election It shall be the duty of the Overseers to render such assistance as may be required by the said town clerk or registration officer for the purpose of such alteration or re-arrangement.

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New Windsor
Order.

(4) Where in the opinion of the Minister the circumstances so require the Minister may make such order as appears to him to be necessary to give effect to the provisions of this Order and may vary so far as is requisite the provisions in force with regard to the lists and registers of electors.

Art. XXXI. For the purpose of defraying any expenses under this Order which in the opinion of the Minister are properly chargeable to capital the Corporation may borrow according and subject to the provisions and restrictions of the Public Health Act 1875 and may mortgage the borough fund and borough rate or the district fund and general district rate of the Borough for the purpose of securing the repayment of any moneys so borrowed and the interest thereon Provided that all such moneys shall be repaid within such period not exceeding thirty years from the date of borrowing the same as the Corporation with the sanction of the Minister determine.

Borrowing
powers for
purposes of
Order.

Art. XXXII. Nothing in this Order shall affect the ecclesiastical divisions of any parish or shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Ecclesiastical
divisions and
charities.

Art. XXXIII. This Order may be cited as the New Windsor (Extension) Order 1920.

Short title.

The SCHEDULE above referred to.

PART I.—LOCAL ACTS.

Session and Chapter.	Short Title or Title.
59 Geo. III. c. cxxvi. -	- An Act to rebuild Windsor Bridge in the Borough of New Windsor in the County of Berks and to improve the avenues thereto.
5 Vict. c. viii. -	- An Act to continue and amend "An Act to rebuild Windsor Bridge in the County of Berks and to improve the avenues thereto."
46 & 47 Vict. c. excii.	- Windsor and Eton Waterworks Act 1883.
47 & 48 Vict. c. lxi.	- Windsor Corporation Water Act 1884.

[Ch. cxxxv.] *Ministry of Health Provisional* [10 & 11 Geo. 5.]
Order Confirmation (New Windsor Extension) Act, 1920.

A.D. 1920.

PART II.—CONFIRMATION ACT.

Session and Chapter.	Short Title.	Order thereby confirmed.
58 & 59 Vict. c. ccii.	Electric Lighting Orders Confirmation (No. 5) Act 1895.	New Windsor Corporation Electric Lighting Order 1895.

Given under the Official Seal of the Minister of Health this
Fourth day of May One thousand nine hundred and twenty.

(L.S.)

F. J. WILLIS

Assistant Secretary Ministry of Health.

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